

Policy Title: Land Use and Development

Policy Number: Part 7, Planning and Land Use; Chapter 5, Miscellaneous; Section 4

Type of Policy: Regulatory

Adopting Resolution: CC06-488

References: House Bill 1041 (1974), Article 65.1 of Title 24, Article 28 of Title 30, Article 23 of Title 31, Colorado Revised Statutes; Department of Local Affairs in its letter dated 6-19-74; Resolutions CC74-95, CC74-155, CC75-132, CC75-172, CC76-253, CC76-256, CC77-400, CC05-389

Effective Date: November 1, 2006

Adoption Date: October 31, 2006

Administrative Revision Date: Not applicable

Policy Custodian: Planning and Zoning Division

Purpose: The Jefferson County Board of County Commissioners has, by virtue of Resolution CC74-95, formally expressed its desire to participate in a program of the Department of Local Affairs which sets forth requirements of Counties eligible for financial assistance pursuant to H.B. 1041 (1974); and fully comply with the requirements of H.B. 1041 to effectuate proper planning within this county.

A. The Board of County Commissioners has established the following policies pursuant to the requirements of H.B. 1041:

1. To make the program of identification, designation, and administration of appropriate matters of state interest a part of Jefferson County's comprehensive planning program.
2. To meet standards established by the Department of Local Affairs relative to scope, detail, accuracy and comparability.
3. To identify and designate areas of development pressures within the county, regarding population influx and growth, industrial influx and growth and development as well as factors bearing a substantial impact on development within the county
4. To regulate matters of State interest or of local interest pursuant to Article 65.1 of Title 24, Article 28 of Title 30, or Article 23 of Title 31, C.R.S. 1973.
5. To submit each year a detailed work plan in compliance with the requirements set forth by the Department of Local Affairs in its letter dated 6-19-74 indicating

how financial and technical assistance will be used for identification and designation of matters of State interest within the territory of Jefferson County, including all municipalities.

6. To submit as part of the Work Program those elements of the proposed Comprehensive Plan which outline how various State, Federal, and Local planning efforts will be integrated into Jefferson County's planning program.
- B. Areas of State Interest: Designation and administration of areas of State interest within Jefferson County shall comply with 24-65.1-101, et seq, C.R.S. 1973, and include the following:
1. Mineral Resources
 2. Geological Hazards (Avalanches - Landslides - Rock falls, Mudflows - Unstable or potentially unstable slopes - Seismic effects -Radioactivity - Ground subsidence. Also, as designated by the Colorado Soil Conservation Board or when activities of State interest occur thereon: Corrosive soil - Expansive soil and rock - Siltation)
 3. Wildfire Hazard
 4. Floodplains
 5. Historical Resources
 6. Archaeological Resources
 7. Natural Resources (Wildfire habitats; shore lands)
 8. Airports
 9. Major facilities of a public utility
 10. Interchanges - Arterial and collector highways
 11. Rapid or mass transit
- C. Activities of State Interest: Designation and administration of activities of State Interest shall be pursuant to 24-65.1-101, et seq, C.R.S. 1973, and include the following:
1. Site selection and construction of new or extension of existing domestic water and sewage treatment systems.
 2. Site selection and development of solid waste disposal sites.
 3. Site selection of airports.

4. Site selection of rapid or mass transit terminals, stations, and guideways.
5. Site selection of arterial highways and interchanges and collector highways.
6. Site selection and construction of major facilities of a public utility.
7. Site selection of new communities.
8. Efficient utilization of municipal and industrial water projects.
9. Conduct of nuclear detonations.

D. The Land Use Coordinator

1. The Jefferson County Land Use Coordinator (Planning and Zoning Director) shall be responsible for preparing an annual Work Program in accordance with the guidelines provided by the Colorado State Department of Local Affairs, submitting it to the Department after its approval by the Jefferson County Board of County Commissioners.
2. The Land Use Coordinator is authorized to request supplemental planning funds from the Department of Local Affairs
3. The Land Use Coordinator will work in conjunction with various county departments, state agencies (24-65.1-302/403, C.R.S. 1973), other municipalities involved in identifying, designating, and/or regulating and administering local areas and activities of state interest.